Galveston County District Court

Cause No. 2024-CV-0042

Samantha Steele, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	9-19-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

I. General Denial

Pursuant to Rule 92 of the Texas Rlues of Civil Procedure, Defendant generally denies each and every, all and singular, the material allegations contained in Plaintiff's Original Petition, and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant asserts the defense of proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. The collision occurred at an intersection where Plaintiff's own failure to keep a proper lookout, yield the right-of-way, or obey the traffic control device caused or contributed to the incident, and any recovery must be reduced accordingly.

Second, Defendant asserts the defense of sole proximate cause. The injuries alleged were caused solely by the acts or omissions of Plaintiff or of a third party over whom Defendant had no control, and not by any negligence of Defendant.

Third, Defendant asserts the defense of failure to mitigate damages. Plaintiff failed to exercise reasonable care to mitigate the alleged damages, includnig by faiilng to follow medical advice and to seek timely and appropriate treatment, and any recovery must be barred or reduced to the extent of such failure.

Defendant reserves the right to amend this Answer as discovery proceeds.